

26STCV04480 26STCV04480

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-15

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Case Number: 26STCV04480 Hearing Date: July 15, 2026 Dept: 730

Superior

Court of California

County

of Los Angeles

Department

730

ABID

CAMPOS

Plaintiff,

vs.

FCA

US, LLC,

Defendant.

Case No.:

26STCV04480

Hearing Date:

July 15, 2026

[TENTATIVE]

ORDER CONTINUING UNOPPOSED MOTION TO
BE RELIEVED AS COUNSEL

I. BACKGROUND

Plaintiff

Abid Campos ("Campos") leased a 2023 Jeep Wrangler 4xe ("Subject Vehicle"), manufactured and distributed by Defendant FCA US, LLC ("FCA"). Campos alleges FCA breached express and implied warranties by failing to service or repair the Subject Vehicle pursuant to the express warranty, and Campos has suffered damages as a result of FCA's failure.

On June 12, 2026, Campos's attorney, Peter Maissian ("Counsel"), filed this instant motion to be relieved as counsel for Campos. No opposition has been filed to date.

II. LEGAL STANDARD

The

process to be relieved as counsel of record requires: (1) "[a] notice of motion and motion to be relieved as counsel under Code of Civil Procedure section 284(2) must be directed to the client and must be made on the Notice of Motion and Motion to be Relieved as Counsel—Civil (form MC-051)" (Cal. Rules of Court, rule 3.1362, subd. (a));¹ (2) a declaration on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel-Civil (form MC-052), which "must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (rule 3.1362, subd. (c)); (3) a proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil (form MC-053)," "must be lodged with the court with the moving papers," and "must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known" (rule 3.1362, subd. (e)); and (4) "[t]he notice of motion and motion, declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case" along with additional requirements depending on the type of service (rule 3.1362,

subd. (d)).

The court has discretion to allow an attorney to withdraw, and such a motion should be granted if there is no prejudice to the client and it does not disrupt the orderly process of justice. (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.) "After the order is signed, a copy of the signed order must be served on the client and on all parties that have appeared in the case. The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court." (Rule 3.1362, subd. (e).)

III. DISCUSSION

Counsel submitted completed MC-051, MC-052, and MC-053 forms in compliance with the rule 3.1362 requirements.

Counsel submitted a declaration stating there has been an irreconcilable breakdown in attorney-client communication. (MC-052, Maissian Decl., ¶ 6.) Counsel asserts counsel has served Campos at his last known address via mail. (MC-052, Maissian Decl., ¶ 8; 6/12/26 Proof of Service.)

Counsel has not complied with the California Rules of Court, rule 3.1362 in its entirety. Specifically, counsel did not comply with the service requirements. A notice of motion and motion has been filed, and service of the notice and motion, declaration, and proposed order was made on Campos. Counsel has provided a declaration stating this motion has been brought as a result of a breakdown in attorney-client communication, and Counsel has filed a proposed order relieving Counsel using an MC-053 form.

However, rule 3.1362, subdivision (d), requires the notice of motion and motion, the declaration, and the proposed order be served "on the client and on all other parties who have appeared in the case." (Cal. Rules of Court, rule 3.1362, subd. (d).) Counsel submitted proof of service of all required documents on Campos, but no proof of service on FCA. Because FCA has appeared in this case, filing an Answer on April 10, 2026, Counsel must serve FCA with the required documents.

The Court continues the hearing on the motion
to allow Counsel to comply with service requirements.

IV. CONCLUSION

Campos's Counsel's Motion
to Be Relieved as Counsel is therefore CONTINUED to October 5, 2026.

Counsel is ordered to
provide proof of service at least 15 court days prior to the continued hearing
date.

Counsel is ordered to give
notice.

DATED: July 15, 2026

Hon.
Alexander C.D. Giza

Judge
of the Superior Court

PLEASE TAKE NOTICE:

- Parties are encouraged to meet and confer
after reading this tentative ruling to see if they can reach an agreement.
- If a party intends to submit on this
tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by
the case number. The body of the email must include the hearing date and time,
counsel's contact information, and the identity of the party submitting.
- Unless all parties submit by email to this
tentative ruling, the parties should arrange to appear remotely (encouraged) or
in person for oral argument. You should assume that others may appear at the
hearing to argue.

- If the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.